

Court No. - 39

Case :- WRIT - C No. - 32081 of 2022

Petitioner :- Shikha Verma

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Manu Saxena

Counsel for Respondent :- C.S.C.,Sunil Kumar Dubey

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Vipin Chandra Dixit,J.

The notice on behalf of the respondent nos. 2 to 4 has been received by Sri Sunil Kumar Dubey who is represented through Sri Vikas Rastogi learned counsel holding his brief.

The challenge to the recovery certificate is on the ground that the demand towards arrears of electricity for the sum mentioned therein under Sections 3 and 5 of the U.P. Government Electrical Undertaking (Dues Recovery) Act, 1958 pursuant to the provisional assessment order dated 13.5.2022 issued by the respondent no.3 is illegal, in as much as, utilization of residential space for professional purposes is covered by Clause 3.3(e) of the Electricity Supply Code, 2005.

The contention is that the inspection report dated 21.4.2022, which is the basis of assessment against the petitioner is incorrect.

The provisional assessment notice was challenged by filing a detail reply to the same on 20.9.2022. It is categorically stated by the petitioner that the said reply has not been considered before making the final assessment which has resulted in issuance of the recovery certificate.

Taking note of the said Act, we find that the dispute being raised by the petitioner can very well be examined within the scope of Clause 6.5 of the Electricity Code, 2005 by the Executive Engineer, namely respondent no.2 herein.

We, therefore, relegate the petitioner to approach the Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Ltd Vidyut Vitran Khand-1st, Mathura by writing a proper representation challenging the provisional assessment notice, i.e the demand raised by the respondent with regard to the arrears of electricity.

The contention of the learned counsel for the petitioner for fresh inspection of the house in question to ascertain the correct position of the professional space utilized by the petitioner shall

also be duly considered by the Executive Engineer.

In case, the petitioner files such a representation giving details of his objections, appending the objections filed to the provisional assessment notice, within three weeks from today along with the copy of this order. The respondent no.2 shall be under obligation to take an expeditious decision by passing a reasoned and speaking order within six weeks, thereafter.

For a period of two months from today or till a fresh decision is taken by the respondent no.2, whichever is earlier, no coercive measure shall be taken against the petitioner. However, in case, the petitioner fails to file the representation as directed above, it would be open for the respondent to proceed in accordance with law.

The writ petition is disposed of.

Order Date :- 15.11.2022

Harshita